

Enquiries to: Faiza Firoz
Consultant
Human Resources
Telephone: 07 2891 5910
Our Ref: K-CF24/3196

**Metro South
Health**

Logan and Beaudesert Health Service

Mr Cory Shepherd
Administration Officer
Switchboard Services
Logan Hospital

Dear Mr Shepherd,

I refer to your employment as an Administration Officer, Switchboard Services, Logan Hospital (**LH**), Metro South Health (**MSH**).

I am advised you have not reported to work since your WorkCover Claim was declined on 19 September 2024. Records indicate you have not been approved for a further period of leave and your line manager, Ms Chloe Taylor, Switchboard Manager, Switchboard Services, LH, MSH has made several attempts to ascertain your intention to return and support you in transitioning back to your duties.

The last reported contact you have made with Ms Taylor was on 15 July 2024, whereby you sent a text message to Ms Taylor's personal phone advising that HR have a document for the dates that you will not be at work and that you will not be in this (July) month. Ms Taylor responded to confirm the email address that you had sent this message to as she was not in receipt of this information.

To date, no further response has been received from you.

The following attempts have been made to contact you:

- On **20 September 2024**, Ms Taylor attempted to contact you via:
 - Email at 8:38am. In this email Ms Taylor advised that you are required to complete the work capacity checklist and provide an updated medical certificate as soon as possible. Ms Taylor also required you to reply to her email to determine what leave balances you preferred to access to cover your period of absence leading up to your return.
- On **24 September 2024**, Ms Taylor attempted to contact you via:
 - A text message sent at 11:16am confirming that an email was sent to you 20 September 2024 requiring a response.
- On **25 September 2024**, Ms Taylor attempted to contact you via:
 - A telephone call to your mobile phone at approximately 8:32am. You did not answer this call.
 - An email at 8:43am requesting you urgently reply to her email or call confirming your intentions to return to your role. Ms Taylor again clarified that an updated medical certificate or work capacity checklist is required.

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- On **26 September 2024**, Ms Taylor attempted to contact you via:
 - A telephone call to your mobile phone at approximately 10:58am. You did not answer this call.
 - A text message sent at 11:18am advising that Ms Taylor had attempted to call you to discuss your return to work. Ms Taylor also advised that she had sent you emails regarding this.

These attempts have been unsuccessful and to date Ms Taylor has not received any responses from you.

I draw your attention to clause 9.6 (Abandonment of Employment) of *Hospital and Health Service General Employees (Queensland Health) Award – State 2015*, which states:

- (a) *The absence of an employee from work for a continuous period exceeding three days without the consent of the employer and without notification to the employer shall be prima facie evidence that the employee has abandoned their employment.*
- (b) *If, within a period of 14 days from their last attendance at work or the date of their last absence in respect of which notification has been given or consent has been granted, an employee has not established to the satisfaction of their employer that they were absent for reasonable cause, they will be considered to have abandoned their employment.*
- (c) *Termination of employment by abandonment in accordance with clause 9.6 will operate as from the date of the employee's:*
 - (i) *last attendance at work; or*
 - (ii) *last absence in respect of which consent was granted by the employer; or*
 - (iii) *last absence in respect of which the notification was given to the employer by the employee, whichever is the latter.*

Your intentions regarding your ongoing employment

I would like to provide you with the opportunity to advise me of the reason(s) for your absence and your intentions in relation to your ongoing employment with LH and MSH.

If you are unable to provide a response due to medical or other legitimate reasons, I request you authorise a family member, union or legal representative to respond on your behalf.

Any response you wish to provide should be provided within **seven (7) calendar days** of the date of this letter and sent to:

Name: Ms Anne Coccetti
Executive Director
Logan and Beaudesert Health Service

Postal address: PO Box 6031
YATALA QLD 4207

Email: ED_Logan@health.qld.gov.au

Documentation

- Attachment 1: Last contact on 15 July 2024
- Attachment 2: Email sent 20 September 2024 and 25 September 2024
- Attachment 3: Text message 24 September 2024
- Attachment 4: Phone call 25 September 2024

Attachment 5: Phone call 26 September 2024
Attachment 6: Text message 26 September 2024

If you are a member of a union, you may wish to seek assistance from you union in preparing your response.

If you do not respond within **seven (7) calendar days** from the date of this letter, or your response is not received within this time, I will determine you are absent from duty without approved leave and without reasonable excuse and you have abandoned your employment. If this occurs:

- your last day of work will be considered to be 19 September 2024.
- all monies owing to you will be paid in full and deposited into your nominated bank account
- you will be required to return your staff identification/proximity card and any other property of the MSH you have in your possession.

Human rights

I acknowledge that my decision to commence this process to determine whether you have abandoned your employment may impact and potentially limit your human rights including the right to take part in public life, right to privacy and the right to reputation, which extends to protect professional relationships and reputation.

However, in my view, any limitation is demonstrably justified. This is because it is in the public interest in ensuring that employees comply with the *Code of Conduct for the Queensland Public Service*, and any employment legislation including for instance the *Awards and Agreements* relevant applicable to your terms of employment. I consider that this outweighs the limited potential impact on your human rights at this time.

Employee assistance

I acknowledge this may be a challenging time for you. You are able to access confidential support through the employee assistance service. This is a confidential counselling service which is free of charge to all employees of MSH for up to six sessions per calendar year. Access to this service is by self-referral. If you wish to access this service, please contact TELUS Health on 1800 604 640.

Questions

If you have any questions in relation to the matters raised in this letter, please contact Ms Firoz on telephone (07) 2891 5910 or via email LBH_HR@health.qld.gov.au.

Yours sincerely



Anne Coccetti
Executive Director
Logan and Beaudesert Health Service
Metro South Health

26 / 09 / 2024